

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 23, 2012

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Mr. Allen, Ms. Ash, Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. Also present: Carol Intlekofer, City Clerk; Lois Huff, City Treasurer, and Dan White, City Attorney. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mr. Brown moved to approve Consent Agenda items, seconded by Mr. Allen. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 9, 2012. Motion (per Consent Agenda) carried.

Mr. Valdez moved to approve payment of vouchers as presented, seconded by Mr. Allen. Upon inquiry, Rick Parish, Parks and Recreation Director, reviewed a voucher payable to Art Casting of Colorado relating to services to recast a bronze statue located in Lions Park that had been vandalized. He stated Arts in Public Places budgeted funds are being utilized as the amount is under the City's insurance deductible amount. Brief comments were made regarding concerns with vandalism and resulting costs. Motion carried. Voting "yes" -- all members of the governing body.

An Ordinance amending the City of Cheyenne's Sanitation Fee Schedule -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Collins).

[CA] Resolution approving the City of Cheyenne's 2012- 2013 Annual Action Plan prepared by the Cheyenne Housing and Community Development Office. Motion (per Consent Agenda) carried. (#5376)

Resolution authorizing the Mayor and the City Clerk to sign a Final Plat for North Cheyenne Community Park, Second Filing, a replat of North Cheyenne Community Park, Cheyenne, Wyoming (located north of and adjacent to Storey Boulevard, east of and adjacent to Chief Washakie Avenue). Reporting for Public Services Committee, Ms. Ash moved to adopt with staff recommendations #1 and 2, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body. (#5377)

[CA] Resolution authorizing an amended Final Plat to accompany Resolution #5295 B as adopted by the Governing Body on July 11, 2011 for Niobrara Energy Park, a replat of a portion of Tracts 6, 17, & 18, Clear View Tracts, a portion of C.B.C. Subdivision, and a portion of the N½ of Section 9, T.13N., R.66W., 6th P.M., Laramie County, Wyoming (located west of South College Drive

(behind Lighthouse Baptist Church), north of Laramie County Community College. Motion (per Consent Agenda) carried. (#5378)

Resolution providing for the review and approval of the South Cheyenne Water and Sewer District's application for three Mineral Royalty Capital Construction Account Grant applications before the Wyoming State Loan and Investment Board for the Orchard Valley Sanitary Sewer Main Replacement Project. Reporting for Finance Committee, Mr. Brown moved to adopt, seconded by Mr. Valdez. Mr. Brown moved to amend by substitute, seconded by Mr. Valdez. It was noted the substitute inserts the word "staff" following the word "utilities" in the 6th "Whereas" clause. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body. (#5379)

[CA] Resolution re-appropriating the Fiscal Year 2012 budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 and 16-4-113. Motion (per Consent Agenda) carried. (#5380)

[CA] Resolution authorizing the Mayor to sign a Memorandum of Understanding with Laramie County to apply for the Edward Byrne Memorial Justice Assistance Grant Program -- referred to Finance Committee (sponsor -- Mr. Brown).

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne to accomplish the Crow Creek Water Reclamation Facility Improvements Project -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Collins).

[CA] Resolution authorizing submission of a Mineral Royalty Capital Construction Account Grant (Chapter 3) application to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne for the Snyder Avenue Sewer Rehabilitation Project: West 24th Street to West Pershing Boulevard -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Collins).

[CA] Resolution prioritizing two Mineral Royalty Chapter 3 Grant requests to the State Loan and Investment Board on behalf of the Governing Body of the City of Cheyenne -- referred to Finance Committee (sponsors -- Mr. Brown and Mr. Collins).

[CA] Resolution approving Sanitary Sewer Service, by User's Agreement, for Everett Winkler, 2619 Whitney Road, Cheyenne, Wyoming -- referred to Finance Committee (sponsor - Mr. Brown).

Preliminary Plat for Saddle Ridge Subdivision, 4th Filing, a replat of Lots 1-19, 21, and 23, Block 14, and Lots 1-27, Block 15, located in the S½ NW¼ and N½ SW¼, Section 25, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located east of Whitney Road, between Laramie Street and Countryside Avenue). Ms. Ash moved to acknowledge receipt, seconded by Ms. Broyles. Ms. Ash moved to amend to replace pages 1 and 2 of the staff report and to acknowledge receipt of the preliminary plat with staff recommendations #2, 3, 5, 7 and 8, seconded by Dr. Rinne. Motion to amend carried. Voting "yes" -- all members of the governing body. Main motion as amended carried. Voting "yes" -- all members of the governing body.

Preliminary Plat for Lincoln Addition, Second Filing, a replat of a portion of Tract B,

Lincoln Addition, and abandoned Wyoming Department of Transportation right-of-way being situated in a portion of Section 1, T.13N., R.67W., 6th P.M., Cheyenne, Wyoming (located north of and adjacent to West Lincolnway, between Westland Road and Stinson Avenue. Ms. Ash moved to acknowledge receipt with staff recommendation #1, seconded by Ms. Broyles. Upon inquiry, Brad Emmons, AVI, agent for the applicant, verified the initial conceptual design had changed to now include two hotels and a restaurant. Motion carried. Voting "yes" -- all members of the governing body.

Preliminary Plat for Campstool Addition, Fourth Filing, situate in portions of the NE¼ of Section 31, and the NW¼ of Section 32, T.14N., R.65W., 6th P.M. and a replat of a portion of Campstool Addition, First Filing, Cheyenne, Wyoming (located north of and adjacent to I-80 Service Road, east of Industry Road and south of Venture Drive). Ms. Ash moved to acknowledge receipt with staff recommendations #1, 3, 4 and 5, seconded by Ms. Broyles. Motion carried. Voting "yes" -- all members of the governing body.

[CA] Agreement between the City of Cheyenne, Municipal Court, and Laramie County Sheriff's Department and Laramie County, Wyoming, for Municipal Court security services. Motion (per Consent Agenda) carried. (#5826)

[CA] Agreement between the City of Cheyenne and Josh Cossitt to provide tennis services and instruction for the 2012 season. Motion (per Consent Agenda) carried (revenue to the City -- \$600.00). (#5827)

[CA] Contract between the City of Cheyenne, Police Department, and Laramie County School District No.1 for School Resource Officers for summer school. Motion (per Consent Agenda) carried. (#5828)

[CA] Agreement between the City of Cheyenne and Boys and Girls Club of Cheyenne, Inc. for lease of City-owned real property located at 1700 Snyder Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried (revenue to the City -- \$12.00). (#5829)

[CA] Agreement between the City of Cheyenne, Parks and Recreation Department, and Cheyenne Girls Softball Association for concession services at Converse Softball Complex and Brimmer Softball Complex for 2012, 2013 and 2014. Motion (per Consent Agenda) carried (revenue to the City -- \$1,750.00/annually). (#5830)

[CA] Agreement between the City of Cheyenne and Mercer Group, Inc., for a Personnel Organizational, Classification and Compensation Study and Analysis -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County, Wyoming, to provide public transportation services to Laramie County Community College, City/County Health Department, and an area of Laramie County adjacent to the City -- referred to Finance Committee.

[CA] Consideration of Bid #R-28-12 for furnishing one new 2012 front end wheel loader from Tri-State Truck & Equipment, Casper, Wyoming, for Street and Alley Division (2007-2010 1% Sales

Tax). Motion (per Consent Agenda) carried (amount not to exceed \$198,640.00).

[CA] Consideration of Bid #R-29-12 for furnishing one new 2012 stationary solid waste knuckleboom crane from Ameri-Tech Equipment Company, Casper, Wyoming, for Solid Waste Transfer Station (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-32-12 for furnishing three new 2012 cab and chassis with automated high dump refuse side loader body from Peterbilt of Wyoming, Cheyenne, Wyoming, for Sanitation Division (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Consideration of Bid #R-33-12 for furnishing five new 2012 cab and chassis with automated refuse collection packers with dual arm side loaders from Peterbilt of Wyoming, Cheyenne, Wyoming, for Sanitation Division (Solid Waste Management fund) -- referred to Finance Committee.

[CA] Application for a Bar and Grill liquor license application filed with the City Clerk's Office for Blazin Wings, Inc. d/b/a Buffalo Wild Wings Grill & Bar, 1740 Prairie Avenue, Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

Announcement was made of the Appointment of Howard A. Hill, Sr., to the Mayor's Council for People with Disabilities, to be confirmed May 14, 2012.

Announcement was made of a Public Hearing to be held Monday, May 14, 2012 at 6:00 p.m. in City Council Chambers, 2101 O'Neil Avenue, Cheyenne, Wyoming, to determine whether compliance of annexation conditions required by Wyo. Stat. §15-1-402 exist for a parcel of land being situated in a portion of the N½ of the N½ of the NE¼ of the NE¼ of Section 11, T.13N., R.67W. of the 6th P.M., Laramie County, Wyoming (generally located at the end of West 5th Street, west of Southwest Drive, a/k/a 4121 W. 5th Street).

[CA] Designation of Official Voting Delegate and Alternate Delegate for the City of Cheyenne at the 2012 Wyoming Association of Municipalities Annual Convention -- referred to Finance Committee.

Under other business:

Carol Intlekofer, City Clerk, advised there would not be a City Council Public Services Committee meeting on Tuesday, May 8, 2012 at Noon in Room 122, Municipal Building, as there were no pending or referred items for the agenda requiring a meeting.

Upon request, Ms. Intlekofer read the following entitlement for an item being introduced under other business: "2012-2013 Collective Labor Agreement between the City of Cheyenne, Wyoming, and Cheyenne Firefighters Local Union No. 279, International Association of Firefighters" with Mayor Kaysen referring the item to Finance Committee. It was noted the next Finance Committee meeting will be held on Monday, May 7, 2012 at 11:00 a.m. in Room 122, Municipal Building.

Appreciation was expressed to Leadership Cheyenne and Cheyenne Cottonwood Society

volunteers, Cheyenne Light, Fuel and Power, Rocky Mountain Landscaping and City staff who contributed toward and assisted with the recent planting of 35 trees in David R. Romero South Cheyenne Community Park.

There being no further business to come before the governing body, Mayor Kaysen adjourned the meeting at 6:16 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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